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CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. VS LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION FOR AN ORDER COMPELLING THIRD-PARTY MARRIAGE AND FAMILY THERAPIST MARK TURNEY TO PRODUCE MENTAL HEALTH RECORDS OF PLAINTIFF JANE DOE M.Q.
CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. VS LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL THIRD- PARTY PROVIDER LAKE ELSINORE CLINICA MEDICA TO PRODUCE PLAINTIFF'S MEDICAL RECORDS
CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. VS LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION FOR AN ORDER COMPELLING THIRD-PARTY LICENSED MARRIAGE AND FAMILY THERAPIST DANIELLE LYNANN CISNEROS TO PRODUCE MENTAL HEALTH RECORDS OF PLAINTIFF JANE DOE M.Q.
CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. VS LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION FOR AN ORDER COMPELLING THIRD-PARTY PROVIDER GRACE BRIDGE FAMILY COUNSELING SERVICES TO PRODUCE MENTAL HEALTH RECORDS OF PLAINTIFF JANE DOE M.Q.
CASE #	CASE NAME	HEARING NAME
CVRI2305207	DOE M.Q. vs LAKE ELSINORE UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL THIRD- PARTY PROVIDER SANTA ANA COLLEGE TO PRODUCE PLAINTIFF'S STUDENT RECORDS

Tentative Ruling:

Plaintiff, Jane Doe M.Q., is a minor who alleges she was sexually assaulted by the school janitor at Machado Elementary School, which is part of the Lake Elsinore Unified School District (District). Plaintiff alleges negligence against the District.

Plaintiff alleges she has suffered severe emotional distress because of the assault. Plaintiff has worked with various mental health professionals as a result of the assault. Defendant issued subpoenas to four entities seeking Plaintiff's mental health

records. The entities/professionals who were subpoenaed have refused to provide Plaintiff's records citing the psychotherapist-patient privilege. Plaintiff also served written objections to the subpoenas.

Defendant now brings five motions to compel. Four are to compel each entity/professional to produce Plaintiff's mental health records. Defendant argues the records are relevant because Plaintiff has put her mental health at issue and by so doing has waived the psychotherapist-patient privilege. Another motion is to compel Santa Ana College to produce Plaintiff's student records. Defendant contends Plaintiff's school records may contain requests for academic accommodations, disability-support applications, counseling referrals, or other related documents reflecting Plaintiff's mental conditions in the years following the assault.

Plaintiff opposes the motions. Plaintiff acknowledges Defendant is entitled to receive some of her mental health records, but Plaintiff argues the records must be limited to protect her privacy. Plaintiff contends her mental health records may contain confidential information about third parties, including family members, siblings, friends, and other minors. Plaintiff asks the court to order that any documents produced by Plaintiff's mental health providers be first reviewed by Plaintiff for the purposes of redacting any information protected from disclosure or reviewed in camera by the court for the same purpose. Plaintiff contends the parties previously agreed to a "first look" protocol where Plaintiff's counsel was permitted to review and redact privileged and confidential material prior to disclosure.

In Reply, Defendant argues Plaintiff does not dispute that the requested records are relevant. Defendant also argues third-party privacy rights are not in danger because the parties have a protective order. Defendant again argues a first look protocol did not work in the past so it should not be employed now.

Analysis

The Health Insurance Portability and Accountability Act of 1996 (HIPAA) protects patient's health information from disclosure. (Title 45 C.F.R. 164, et seq.) This information is also protected under California law by the Confidentiality of Medical Information Act (CMIA). (Civ. Code, § 56.10-56.16.) However, a provider is required to disclose medical information if it is compelled by a court order. (Civ. Code § 56.10(b)(1).) The proper procedure to obtain medical records is laid out in CCP 1985.3. If a *nonparty* disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena. (CCP §2025.480(a); see *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127.) Such an order may be sought under CCP section 2025.480 (applicable to depositions generally) or CCP section 1987.1 (applicable to deposition subpoenas). (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2024) Ch. 8E, §8:609.1.) A showing of "good cause" is required on motions to compel discovery from a *party*, but there is no specific requirement on such a motion directed to a *nonparty* for compliance with a deposition subpoena for document production. (*Id.* at § 8:609.3.)

The subject subpoenas were directed to therapist Mark Turney, therapist Danielle Lynann Cisneros, Grace Bridge Family Counseling, Lake Elsinore Clinica Medica, and Santa Ana College. The subpoenas to Turney, Cisneros, Grace Bridge, and Lake Elsinore Clinica Medica seek the following:

All medical, psychological, and mental health records, check-in sheets, files, reports, therapist notes, referrals, prescriptions, and all correspondences, between the client and therapist as well as all correspondences between the therapist- and client's attorneys as well as any other medical or mental health provider regarding [Plaintiff, DOB XXX].

Documents should also include, but not be limited to, any and all emergency room records, nurses notes, all test and test results, medication records, sign-in sheets, color photographs, patient information sheets, handwritten notes, transcriptions, telephone messages, emails, insurance records, electronic media and any documents in the file from other health care providers, itemized billing records and payment records (proof of amounts paid) relating to any care, treatment, diagnosis, prognosis, consultation and/or findings from January 1, 2013 to the present date pertaining to [Plaintiff, DOB XXX, SS XXX].

The subpoena to Santa Ana College seeks:

Any and all academic records including but not limited to, applications, academic transcripts, attendance, grades-report cards, health records, disciplinary records (as well as any behavioral reports), financial records, correspondence, notes and memos pertaining to [Plaintiff DOB XXX, SS XXX]; all medical records, including requests for accommodations, disability support, imaging, reports, SOAP notes, treatment notes, physician notes, nursing notes, therapy notes, and any other health records; all work or student employment materials, including applications, forms, disciplinary actions, attendance, or requests for time or any other documents pertaining to [Plaintiff]; all applications for participation in any physical activity, gym, or class pertaining to [Plaintiff]. Documents should also include, but not be limited to, any data stored electronically.

Notably, Plaintiff did not move to quash the subpoenas. Plaintiff did object to the subpoenas. There is no dispute by Plaintiff that the records being sought are discoverable. However, Plaintiff argues the scope of the documents must be limited.

The right of privacy is protected by Article I, section I of the California Constitution. However, the right to privacy is not absolute and even private information can be disclosed in some circumstances. The court must carefully balance the right of privacy against the need of discovery. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) When compelled disclosure intrudes on the constitutionally protected right to privacy, it cannot be justified solely on the ground that it may lead to relevant information. (*Morales v. Superior Court* (1979) 99 Cal. App. 3d 283, 289) Instead, personal information can be ordered disclosed only if the information is directly relevant

and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.) A plaintiff partially waives this privacy protection by filing a lawsuit. (*Vinson v. Superior Court* (1987) 43 Cal. 3d 833, 840.) However, the waiver is limited to only those confidential matters put into issue by the plaintiff and is narrowly construed. (*Britt, supra*, 20 Cal. 3d at 864.)

Furthermore, Evidence Code §1014 creates a psychotherapist-patient privilege for confidential communications between a patient and a psychotherapist. The psychotherapist has a duty to claim the privilege. (Evid. Code §1015.) There are several exceptions including the patient-litigant exception. (Evid. Code §1016-1027.) “[T]he patient-litigant exception allows only a limited inquiry into the confidences of the psychotherapist-patient relationship, compelling disclosure of only those matters directly relevant to the nature of the specific ‘emotional or mental’ condition which the patient has voluntarily disclosed and tendered in his pleadings or in answer to discovery inquiries.” (*In re Lifschutz* (1970) 2 Cal.3d 415, 431.) “[T]he exception compels disclosure only in cases in which the patient’s own action initiates the exposure, ‘intrusion’ into a patient’s privacy remains essentially under the patient’s control.” (*Id.*, at 433.) Furthermore, a plaintiff in a personal injury action does not put his or her entire mental condition at issue by claiming general emotional distress associated with physical injuries. (*Davis v. Superior Court* (1992) 7 Cal. App. 4th 1008, 1015-1016.)

Plaintiff opposes the motions because the parties previously agreed to a “First Look” protocol for Plaintiff’s therapy records. In February 2025, the parties agreed that Plaintiff’s counsel was permitted to review and redact privileged material, authenticate records through affidavits, limit disclosure to attorneys’-eyes-only, and resolve disputes through additional meet and confer efforts before disclosure. However, that agreement was specific to records from CMM Mental Health & Family Therapy and Inscriptions Children’s Clinic. (Cifarelli Decl., Exhibit 3.) In February 2026, Defendant withdrew from the First Look Agreement “for various reasons” and then issued the instant subpoenas. (Cifarelli Decl., Exhibit 4.)

Defendant states the First Look protocol was “unfairly carried out” because the records Plaintiff provided were over-redacted and claimed numerous privileges of Plaintiff and third parties. Defendant compares the records produced by Plaintiff after the First Look redactions and those produced in response to written discovery. Defendant asserts Plaintiff redacted information concerning a loved one’s death from the First Look documents but the same information was produced in full in response to discovery demands. Defendant also asserts Plaintiff’s counsel impermissibly redacted information that Plaintiff struggles in her current relationships because of a past experience with infidelity, but that same information was disclosed in discovery. Defendant argues this struggle with infidelity could explain the issues she currently has in maintaining relationships as opposed to that issue being solely related to the sexual assault. Defendant argues these inconsistencies show the First Look protocol is untenable.

Plaintiff clings to the idea that since the parties previously agreed to the First Look protocol, the same protocol should be implemented now. There is no legal or statutory basis for doing so. The parties previously had an agreement with respect to

the production of previous records and now Defendant is unwilling to apply the same agreement to entirely new production of records. Defendant is within its right to not continue the agreement. Plaintiff has not provided any authority that supports forcing Defendant to comply with the First Look protocol the parties previously agreed to. There is no authority mandating this protocol either in the Code of Civil Procedure or case law.

Plaintiff alleges she suffers from “mental anguish, sleeplessness, crying spells, humiliation, emotional outbursts, depression, nightmares, inability to focus, bed-wetting, fear, decrease in academic performance and exhaustion.” (First Amended Complaint ¶41.) Plaintiff “recognizes that Defendant has the right to obtain information regarding Plaintiff’s damages.” (Opp. p.6:25-26.) In challenging the subpoenas, Plaintiff only brings up two areas of concern.

First, that the records may contain information regarding Plaintiff’s sexual history that is unrelated to the alleged assault. Plaintiff was a minor at the time of the alleged assault but now is an adult. Plaintiff cites CCP §2017.220, which states in any civil action alleging sexual assault, “any party seeking discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged perpetrator shall establish specific facts showing that there is good cause for that discovery, and that the matter sought to be discovered is relevant to the subject matter of the action and reasonably calculated to lead to the discovery of admissible evidence.” (CCP §2017.220(a).) The mere fact that plaintiff claims extreme mental and emotional distress arising out of alleged sexual harassment is not by itself “good cause” for discovery of other sexual conduct. (*Vinson v. Sup. Ct.*, *supra*, 43 Cal.3d at 841-842.) Declarations by mental health professionals may be required to establish the relevance of other sexual conduct. (*Barrenda L. v. Sup. Ct. (Los Angeles County)* (1998) 65 Cal.App.4th 794, 802.)

Here, Defendant is not specifically seeking information about Plaintiff’s sexual partners but Plaintiff believes her mental health records include that information. As Defendant notes, Plaintiff’s responses to prior discovery indicate she struggles with infidelity within her romantic relationships. (Opp. p.12:1-3.) Defendant contends the infidelity Plaintiff has dealt with as an adult could be a cause of any present emotional and mental trauma. To the extent Defendant seeks records and information about Plaintiff’s other sexual conduct through her mental health records, Defendant has not made the requisite showing of good cause to produce those records. The motion references a declaration from Michelle Conover, Ph.D., Q.M.E., who Defendant says believes “review of these records would assist in the analysis of [Plaintiff’s] damages in connection with the subject incident.” (Mot. p.6:25-27.) However, no declaration from Michelle Conover, Ph.D., Q.M.E. appears in the Court’s file.

Accordingly, the subpoenas must be limited so as not to include information about Plaintiff’s sexual conduct other than with the alleged perpetrator and assault.

Second, Plaintiff argues her mental health records may contain private and confidential information about third parties, including family members, siblings, friends, and potentially other minors. Plaintiff asks that any “references implicating third party privacy interests be redacted before production.” (Opp. p.5:18-19.) This is a fair request, as Plaintiff’s mental health records potentially could include identifying information of

third parties, like names, addresses, dates of birth, etc. Since the assault took place when Plaintiff was a minor, it is important the records produced do not violate the privacy rights of any third-party minors.

Finding and Order:

Grant the motions to compel but the documents produced in response to the subpoenas must be limited to: (1) not include information about Plaintiff's sexual conduct other than with the alleged perpetrator and assault; and (2) not include identifying information of non-party third parties, including names, addresses, dates of birth, or other identifying information. Given the parties' history with the prior First Look protocol, the court instructs the parties to meet and confer about who should redact the records – either a party, a discovery referee, the entities themselves, etc.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404780	WEST VS DURAN	MOTION TO SET ASIDE ON COMPLAINT

Tentative Ruling:

This motion is unopposed. Motion to set aside the default judgment against Rocket Auto Recycling is granted. The Court has signed the submitted proposed order.

The matter is set for a **Case Management Conference on 8/6/2026** at 8:30 a.m. in Dept. 6. Plaintiff to give all parties notice of the CMC.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406368	DURO VS HYUNDAI MOTOR AMERICA, A CALIFORNIA CORPORATION	MOTION TO COMPEL THE DEPOSITION AND ACCOMPANYING DOCUMENT PRODUCTION OF PLAINTIFF LORINA MARGARET DURO

Tentative Ruling:

Moving Party: Defendant Hyundai Motor America
Responding Party: Plaintiff Lorina Margaret Duro

This is a lemon law case relating to a 2022 Hyundai Palisade. Plaintiff Lorina Margaret Duro ("Plaintiff") alleges the vehicle was delivered with serious defects and nonconformities to warranty that impaired the value, use and/or safety of the vehicle. Plaintiff filed the instant action against Defendant Hyundai Motor America ("Defendant"). On November 12, 2024, alleging three causes of action under the Song-Beverly Warranty Act.